

residue as a sinking fund to pay off mortgage debts and other charges, and the trustees were, "during the [*555] * continuance of the trusts," to enter into and hold possession of the rents and profits of the estate, and "not deliver the same to any person beneficially interested in any part thereof," and manage the estate as therein mentioned, and full powers of management were given to the trustees, and they were also given such other powers over the estate as were given to a tenant for life in possession by the Settled Land Act, 1882, it was held that A. was a tenant for life, or a person having the powers of a tenant for life, within the meaning of the Act, and that the trustees could not sell or enfranchise without his consent, as required by sect. 56 of the Act (a).

A gift of an estate comprised in a lease for years to a person during the remainder of the term, if he shall so long live, is not within either clause (4) or clause (6) of subsect. (1), and the devisee cannot exercise the powers of a tenant for life under the Act (b).

7. **Powers of tenant for life.**—Speaking in general terms, the Settled Land Act has not only given to the tenant for life all the powers of disposition of the settled land which were previously given in well-drawn settlements to the tenant for life, or to the trustees with the consent of the tenant for life, but has also conferred on the tenant for life larger and more extended powers, and has effected a complete revolution in the manner of dealing with settled estates, and in the mutual relations of the tenant for life and trustees. Thus the Act has given to the tenant for life an absolute power at his own discretion to sell, enfranchise and exchange the settled land, to grant building, mining and other leases thereof, to concur in a partition, to accept surrenders of lease, to dedicate parts of the settled land for streets and open spaces, and other similar purposes, and various other powers, the details of which, and the conditions and restric-

(a) *Re Duke of Buccleugh's (Clitheroe) Estate*, *Re Clitheroe Estate*, 28 Ch. D. 378. (b) *Re Hazle's Settled Estates*, 26 Ch. D. 428; affirmed 29 Ch. D. 78.